

NSW ORNITHOLOGICAL RECORDS APPRAISAL COMMITTEE: RULES

INTRODUCTION:

The purpose of these Rules is to set down in a clear, concise and orderly manner the procedures governing the operations of the New South Wales Ornithological Records Appraisal Committee. They can be seen as a statement of the Committee's functions and objectives, promoting an understanding and acceptance of its role in the appraisal of records of rare species.

The submission of a record to the Committee should not be viewed as an alternative to publication, nor should its decisions be interpreted in any way except as an appraisal of claimed records on the evidence presented. Observers whose records have been accepted by the Committee are encouraged to consider publication in an appropriate Australian Journal.

1.0 FUNCTION OF THE RECORDS APPRAISAL COMMITTEE:

- 1.1 To receive submissions and provide an informed, discerning and impartial appraisal of claimed records of birds rare in New South Wales.
- 1.2 To maintain an archival record of submissions to the RAC.
- 1.3 To publish regularly the decisions of the RAC.
- 1.4 To maintain a Review List of those species which the Committee will treat.
- 1.5 The function of the Committee is to accept or not accept records submitted to it. It does not reject records and its decisions are not binding on any person.

2.0 MEMBERSHIP OF THE COMMITTEE

2.1 The Committee shall consist of eight or nine members, one of whom shall be the Chairman and another, the Secretary.

2.2 The Chairman and Secretary shall be appointed by the Committee

2.3 A member shall be nominated by the Committee and be appointed by the Chairman for a term of one year. All members shall be eligible for reappointment to the Committee.

2.4 A candidate for membership shall be a person who in the estimation of the existing Committee, has demonstrated an expert ability in and knowledge of the field identification of birds and is a member in good standing of either Birding NSW, Illawarra Bird Club, Hunter Bird Observer Club, Cumberland Bird Observer Club or the NSW Bird Atlassers.

2.5 The Committee shall meet at least annually in committee or by other means when a quorum shall be five members.

2.6 The Committee may co-opt a proxy to replace a member during a limited absence or to fill a casual vacancy until the appointment of a full member to the Committee.

2.8 A Committee member shall review records thoughtfully and be committed to doing the work of the Committee in a timely and efficient manner.

2.9 The Committee may remove for cause any member who is delinquent in their duties by a majority vote of all other members.

3.0 VOTING PROCEDURES:

(a) General

3.1 All Committee members including the Chairman shall cast a vote independently which will either Accept or Not Accept a record.

3.2 Not Accept and where required Accept votes at the first round of voting and all votes at subsequent rounds shall be supported by reasons for the decision expressed.

3.3 Committee members shall not consult with each other at the first circulation of a record but may consult before voting at any subsequent recirculation.

3.4 Upon receipt of a submission, the Secretary shall circulate the documentation to each Committee member and each member shall:

- judge its validity and cast a vote within three weeks of receipt. If this cannot be done, then the member will promptly inform the Secretary;
- convey the decision to the Secretary without delay; and
- when all decisions have been received, the Secretary shall then notify the submitter of the Committee's decision.

3.5 Expert opinion may be requested by any member of the Committee prior to a final decision being obtained.

3.6 A vote on a submission may be deferred pending receipt and circulation of expert opinion.

(b) Circulation

3.7 A record shall be accepted if it receives either zero or one vote not in favour of acceptance.

3.8 A record shall not be accepted if it receives four or more votes not in favour of acceptance.

3.9 A second round of voting may take place if:

- there are either two or three votes not in favour of acceptance; or
- expert opinion is requested and obtained; or
- the Chairman or any member so requests with reasons except when a vote is unanimous; or
- substantial new evidence is presented; and the file containing the first round of votes is recirculated.

3.10 A third and final round of voting with recirculation of the file may take place where any of the conditions governing the requirement for a second round vote are repeated.

3.11 A record that has not attained the conditions for a decision after three rounds of voting shall be discussed at a meeting of the Committee following which a final vote shall be taken. The record shall then be accepted by a majority vote of at least seven members or shall otherwise be deemed not accepted.

3.12 The Chairman or any member may request with reasons that a submission be considered at a Committee meeting after at least two rounds of voting.

3.13 At the discretion of the Committee, any case may be reviewed through the presentation of new and substantial written evidence or for reasons that are based on details of identification, legitimacy or taxonomy (including taxonomic changes), but not for grievances. Such a review may include a series of similar or related cases.

3.14 If the Committee agrees to reopen a case, a decision which reverses a previous decision shall only occur by a majority vote of at least seven voting members. Any 'benefit of the doubt' should favour the original decision in most instances.

4.0 OBSERVATIONAL REQUIREMENTS

(a) Subject Species

4.1 The Committee may appraise extra-limital records and will appraise records of species defined in the Review List and new additions to the NSW List including:

- pelagic seabirds observed within the Australian 200 nautical-mile fishing zone;
- tide-line specimens, collected specimens, road kills, deceased passage migrants and other specimens excepting those transported into Australia or obtained illegally;
- birds of Lord Howe Island and Jervis Bay.

4.2 It will not appraise records of birds which the Committee reasonably believes to be of captive origin.

4.3 It may appraise published records which have not previously come before it.

4.4 The Committee shall compile and maintain a Review List of those species which it will treat based on reported observations over a preceding ten-year period to a maximum average of 1.5 records per year.

4.5 A species recorded 15 times or more overall **and** in at least 7 of the last 10 years may be removed from the Review List.

4.6 Species that decline in occurrence to below at least one record in 7 of the past 10 years may be added or returned to the Review List, although in cases where they have been removed from the Review List, they can be returned no sooner than 5 years after removal.

4.7 However, the Committee, at its discretion by quorate vote, may remove, retain or add species to the Review List in the event that there are rapid increases or decreases in the number of records.

(b) Submissions

4.7 May be in the form of a report compiled by the observer or author or may use the NSW ORAC Unusual Record Report Form.

4.8 Should annexe copies of field notes, sketches, photos and other available material and should indicate the fate of specimens.

4.9 Should contain a complete description of the bird and the circumstances of the observation.

4.10 Should analyse the identification criteria, cite references used and name other observers able to corroborate the record.

5.0 DECISIONS OF THE COMMITTEE:

5.1 The decisions of the Committee shall be notified to all members, and to persons submitting the record.

5.2 The Committee's decisions will be published annually in an appropriate NSW Journal.

5.3 The case files of the Committee are confidential but may be made available solely to the Presidents of Birding NSW, IBOC, HBOC, CBOC and NSW Bird Atlassers.

6.0 HISTORICAL SUMMARY

Rules: Draft adopted on 11 January 1992 at the first meeting of the Committee. The Draft as based upon those of the RAOU Records Appraisal Committee as prepared by Robert M Patterson, 1991 Chairman RAOU RAC and adopted in October 1991.

(These rules last updated on November 27, 2021)